FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

STEPHEN GRANT RUSSELL,

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent.

File No: 154703
Docket Nos: V-07641-18
V-07641-18/E
O-12635-19
O-12635-19/19C

MOTION FOR INQUIRY INTO WALSH'S FINANCIAL CONDITION AND TERMINATION OF APPOINTED COUNSEL BASED ON ALLEGED FINANCIAL HARDSHIP

TO THE FAMILY COURT:

I, STEPHEN GRANT RUSSELL, respectfully state that:

I submit this Motion *pro se*, to provide notice of multiple inconsistencies in Tara Walsh's representations regarding her financial condition and income.

As the Court is aware, the Court appointed counsel for Ms. Walsh based on her representations that she is financially unable to afford counsel. However, Ms. Walsh has made multiple false and inconsistent representations to this Court regarding her financial condition and childcare and living costs. Ms. Walsh comes from an extremely wealthy family. Her father made millions working with Michael Milken at Drexel Burnham in the 80s and the family lives in an enormous house—approximately 4600 square feet, 6 bedrooms, 4.5 bathrooms, 6 acres of property, inground pool, separate structures from the main house such as a pool house and carriage house and a remote controlled iron gate at the foot of a quarter-mile long driveway—in one of the most affluent neighborhoods in the country.

Section 262 of the New York Family Court Act provides that a party in a family court proceeding has "the right to have counsel assigned by the court in any case where he or she is financially unable to obtain the same." N.Y. Fam. Ct. Act § 262. However, one who claims financial hardship cannot simply claim so without inquiry into their true financial condition. *See e.g., Carney v Carney*, 54 Misc 3d 411, 417 [Sup Ct 2016], *order vacated, appeal dismissed*, 160

Public copy: the child's name is shown as E.V. in one bookmark; a personal phone number and a personal email address are removed. Otherwise unchanged.

AD3d 230 [4th Dept 2018], *and order revd, appeal dismissed*, 160 AD3d 218 [4th Dept 2018] ("**[T]he Legislature, adopted the "unable to retain counsel" standard to assure representation at public expense to those in real need, but not extend that precious right to litigants who, by choice, intentionally limit their income to avail themselves of publicly financed legal services…[I]t would seem that no conclusion regarding an inability to retain counsel could be drawn without evidence of cost and availability of 'retaining counsel.'**").

Moreover, I have been ordered to expend tremendous sums of money throughout this proceeding, while Ms. Walsh has intentionally protracted this action by, among other things, repeatedly obstructing visitation with my daughter and submitting verifiably false statements under penalty of perjury to obtain baseless orders of protection against me, all the while claiming that she is both financially unable to afford counsel *and* that she is receiving income from her two "highly successful" companies. Ms. Walsh has also made verifiably false statements that she pays rent and certain childcare and living costs to care for Evie—although her own parents testified under penalty of perjury that Ms. Walsh is indeed living with them rent-free at their estate in Chappaqua and they are caring for Evie without any payment from Ms. Walsh.

I respectfully request that the Court remedy the inherent unfairness in allowing Ms. Walsh to benefit from her false misrepresentations to this Court and her attempts to protract these proceedings and obstruct your Visitation Orders so that she can drain my resources while she expends none. I request that the Court make inquiry into the truth of Ms. Walsh's financial condition and sanction Ms. Walsh for her repeated false misrepresentations to this Court.

A. Ms. Walsh Has Made False and Inconsistent Representations Regarding Her Income Making Clear that Ms. Walsh is Not the Type of "Indigent" Party New York Family Court Act § 262 is Meant to Serve.

Ms. Walsh has made conclusory representations regarding financial hardship, while simultaneously confirming that she has significant income from her two "highly successful" businesses.

During a hearing before this Court on December 18, 2019, Ms. Walsh stated:

> I have two businesses, my handbag business and my marketing consulting business, both of which I've been -- at the time, I have more clients now,

> but during this time period, I was working really hard to build this business back up to where it was before I had my daughter.
>
> […]
>
> I work primarily from home. I have for probably like six years I've been working for myself and I've always worked out of my homes. I do go into the city to meet with clients like one or two times a week because I have to meet with my clients or do different projects for them.
>
> […]
>
> "[A]t one time I had two employees, and they also worked out of my home."

See **Exhibit A**, a true and correct copy of pertinent excerpts of the transcript from the December 18, 2019 hearing, at p. 19 (pertinent portions highlighted).

Tellingly, in a Motion in a San Francisco civil proceeding submitted by Ms. Walsh, she stated that: "**WALSH grew up in one of the wealthiest suburbs in the country and ran two highly successful businesses before Russell entered her life**." *See* **Exhibit B**, Motion submitted and signed by Tara Walsh in the San Francisco Superior Court at p. 4.

Thus, Tara claims that she has "buil[t] her business back up to where it was before [she] had [her] daughter"—which are admittedly now "highly successful."

Further, in a recent hearing before this Court on June 1, 2021, Ms. Walsh stated:

> I go into the city like three days a week now. It depends. I've been working. I have a variety of different clients in the city. One of those clients has asked that I go into their office regularly every week. And then I'm gradually - before ai was going to the city, you know, three to five days a week. So I'm working on that to work out of New York in Midtown
>
> […]
>
> I generally start around 9 and I go, you know, depending on the day but even if I'm working from home, I'm in front of my computer. I have my clients calling. I'm doing meetings. I'm not like, just because - when I do work from home it's not like - I don't have a normal job. You know, I'm accountable. I have to be working all day.

See **Exhibit C**, a true and correct copy of excerpts of the June 1, 2021 transcripts before this Court at p. 9-10 (pertinent portions highlighted).

Ms. Walsh clearly admits that she runs and receives income from two "highly successful businesses." As such, Ms. Walsh should not be entitled to receive the benefit of appointed counsel from this Court.

B. Ms. Walsh Has Made False and Inconsistent Representations Regarding Her Childcare and Living Costs

Moreover, Ms. Walsh has made verifiably false statements regarding her living and child-care costs. Ms. Walsh falsely claims that she pays her mother for babysitting costs.

In a September 16, 2019 hearing before this Court, Ms. Walsh stated:

> **Ms. Walsh:** I pay for babysitting with the [child support] cash…so when I pay for a large chunk of the babysitting**, I take out cash and get it to the babysitter, either my mom** or Christina…I talked to my accountant the other day about doing that for my mom to put her on payroll because she wants to be able to collect Social Security, so she needs to establish that she's worked. **So my accountant said it wouldn't be a problem to put my mom on payroll**… .
>
> […]
>
> **The Court**: You know what, the question is if she's being paid…then it's childcare for which there is payment.

See **Exhibit D,** transcript from September 16, 2019 hearing at p. 125-129 (pertinent sections highlighted).

Ms. Walsh represented to the Court that she pays her mother for childcare costs. However, Tara's father, Stephen Walsh confirmed in his deposition testimony under penalty of perjury that Tara does not pay them for rent or living expenses. *See* **Exhibit E**.

On April 26, 2021, Ms. Walsh's father, Stephen Walsh testified under penalty of perjury:

> **Counsel:** Okay. You mentioned that Tara Walsh and your granddaughter, Evie are living with you. How long have they been living there?

Mr. Walsh: Since, roughly, June of 2018—no, since June of 2018, not roughly—early June. I don't know the exact date. But…

Counsel: And from June of 2018, they lived with you consistently?

Mr. Walsh: That is correct.

Counsel: Does Tara pay you any rent?

Mr. Walsh: She does not.

Counsel: Does she help with any house expenses such as groceries?

Mr. Walsh: She buys her own groceries

See **Exhbit E,** at p. 28 (pertinent portions highlighted).

Further still, Ms. Walsh falsely represented to this Court that she is living in her parent's attic without heat. However, her mother Maura Walsh testified under penalty of perjury:

Mrs. Walsh: To—I'm going to—I'm responding to Tara living in the—in the attic with no hear. That's ridiculous. I have no == no comment on that.

Counsel: Is that true or false?

Mrs. Walsh: Absolutely false.

Counsel: So she's not living in the attic?

Mrs. Walsh: Absolutely not.

Counsel: And she's not living without heat?

Mrs. Walsh: Absolutely not.

See **Exhibit F** at p. 134 (pertinent portions highlighted).

These examples are only a small sampling of Ms. Walsh repeated pattern of making false representations to this Court. Accordingly, the Court should not take Ms. Walsh's conclusory statements as to financial hardship without inquiry into their truth.

C. Under New York Law, The Court Should Inquire Into the Truth of Ms' Walsh's Financial Condition, Withdraw Her Appointed Counsel and Sanction Ms. Walsh

Section 262 of the New York Family Court Act provides that a party in a family court proceeding has "the right to have counsel assigned by the court in any case where he or she is financially unable to obtain the same." N.Y. Fam. Ct. Act § 262.

New York Courts make clear that it is the ***"court's duty to see that public funds allotted for indigent litigants are appropriately utilized."*** *Patricia R. v Peter W.,* 126 Misc 2d 87, 89 [Fam Ct 1984]. Section 262 was ***not*** "designed to alleviate the financial obligations of those able to hire counsel." *Id.; see also e.g., Carney v Carney,* 54 Misc 3d 411, 417 [Sup Ct 2016], *order vacated, appeal dismissed,* 160 AD3d 230 [4th Dept 2018], *and order revd, appeal dismissed*, 160 AD3d 218 [4th Dept 2018] ("[T]he Legislature, adopted the "unable to retain counsel" standard to assure representation at public expense to those in real need, but not extend that precious right to litigants who, by choice, intentionally limit their income to avail themselves of publicly financed legal services…[I]t would seem that no conclusion regarding an inability to retain counsel could be drawn without evidence of cost and availability of 'retaining counsel.'").

"To permit the depletion of available funds by those who are able to pay will cause hardship to those legitimately entitled to free counsel and to the public who ultimately must bear the cost [s]." *Patricia R. v Peter W.,* 126 Misc 2d 87, 89 [Fam Ct 1984] (holding that "Respondent is liable for that portion of Petitioner's counsel fee which he is able to pay, notwithstanding that the attorney was assigned rather than privately retained.") (citing *Matter of Cheri H.,* 121 Misc.2d 973, 469 N.Y.S.2d 551 (Fam. Ct. Bronx Co. 1983)).

In *Pugh v. Pugh* (2 Dept. 2015) 125 A.D.3d 663, 2 N.Y.S.3d 608, the court held that given the mother's statements indicating that she lacked the funds to retain private counsel, the Family Court should have inquired further into the mother's financial circumstances, including, but not limited to, inquiring about her expenses, to determine whether she was eligible for assigned counsel, in proceeding at which father petitioned to modify judgment of divorce so as to permit him to relocate with the parties' children, and mother petitioned to modify the judgment so as to grant her custody of the children.

In, *Moiseeva v. Sichkin*, the court held that the father was not deprived of his statutory right to the assistance of counsel as a result of Family Court's decision not to appoint counsel to represent him in custody proceeding where Family Court properly inquired as to father's eligibility for court-appointed counsel and, after mother presented a document undermining father's claim of indigency, instructed father to submit certain documentation to the court so the court could determine the father's financial eligibility for a court-appointed attorney, but father failed to fully and timely make the disclosure necessary to support his claim of indigency. (2 Dept. 2015) 129

A.D.3d 974, 13 N.Y.S.3d 123; *see also e.g., Iadicicco ex rel. Watkins v. Iadicicco* (3 Dept. 2000) 270 A.D.2d 721, 704 N.Y.S.2d 377 (refusal to adjourn scheduled hearing on child's petition to terminate father's visitation until father could obtain assigned counsel was not abuse of discretion, where Family Court repeatedly urged father to file the required financial affidavit to determine his eligibility for assignment of counsel and he failed to do so); *Alphonse v. Alphonse* (N.Y.A.D. 2 Dept. 2020) 189 A.D.3d 1028, 136 N.Y.S.3d 322 (affirming court's denial of appointed counsel where court properly inquired as to father's financial eligibility for court-appointed counsel and instructed father to submit a form that detailed his financial circumstances, father listed his weekly income as $1,820, he failed to indicate whether he provided financial support to any other individuals, or any of his expenses, aside from his monthly mortgage payments, and, as a result, father failed to fully and timely make the disclosures necessary to support his claim of indigency).

Further, in *Carney,* the court held that in evaluating father's financial ability to retain counsel, for purposes of deciding whether he was entitled to appointed counsel pursuant to provisions of the Family Court Act in child custody and civil contempt proceeding, court could not turn blind eye to his economic potential, especially where there was no prima facie evidence of indigence, such as qualification for public assistance, Medicaid, Social Security Income (SSI), or other income and asset based government assistance programs. *See Carney, supra,* 4 Misc 3d at 417. The *Carney* court held that, "[t]he applicant will also have the burden of proof to show by the preponderance of evidence that it would impractical and unjust to impute income to him equivalent to an income commensurate with his skills and education, and furthermore that he has engaged in a diligent search for employment. The court assigns these burdens to the applicant because he seeks a government benefit and should be required to establish a prima facie case of entitlement based on facts established at the hearing." *Id.* at 434-35.

Here, it is clear that Ms. Walsh only offers conclusory and false representations regarding her alleged inability to afford counsel. Under New York law, the Court should inquire into the truth of Ms. Walsh's claimed financial hardship and remedy the undue prejudice and inherent unfairness from forcing me to be the sole party incurring costs in this proceeding. Ms. Walsh's current ability to unjustly protract this proceeding has empowered her to obstruct visitation with my daughter and file verifiably false statements in support of requests for orders of protection against me without having to expend any costs for such bad faith conduct.

D. CONCLUSION

Ms. Walsh clearly admits in court statements that she receives income from two "highly successful businesses" and has repeatedly made false and inconsistent statements to this Court. As such, Ms. Walsh should not be entitled to receive the benefit of appointed counsel.

I respectfully request that the Court remedy the inherent unfairness in allowing Ms. Walsh to benefit from her false misrepresentations to this Court and her attempts to protract these proceedings and obstruct the Court's Visitation Orders so that she can drain my resources while she expends none. I request that the Court make inquiry into the truth of Ms. Walsh's financial condition and sanction Ms. Walsh for her repeated false misrepresentations to this Court.

WHEREFORE, Petitioner, Stephen Grant Russell, respectfully requests the following relief:

a. The Court make inquiry into Tara Walsh's financial condition and Order that Ms. Walsh must provide sufficient evidence to warrant appointed counsel;

b. That the Court withdraw Tara Walsh's appointed counsel upon a finding of insufficient financial hardship based on Ms. Walsh's court statements;

c. That the Court sanction Tara Walsh for her repeated false representations and Order Ms. Walsh to pay the costs of appointed counsel that were improperly paid for by the State based on her misrepresentations;

d. And for such relief that the Court deems just and proper.

Dated: August 26, 2021



Stephen Grant Russell, pro se

Exhibit A

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

----------x
IN THE MATTER OF:

TARA KATELYN WALSH,

Petitioner,

Family Unit No.: 154703
Docket No.:
F-08146-18

Vs.

STEPHEN GRANT RUSSELL,

Respondent.

----------x

December 18, 2019

HELD AT: White Plains Family Court
111 Dr. Martin Luther King Jr. Blvd.
White Plains, New York 10601

BEFORE: ESTHER R. FURMAN, Part 7
Support Magistrate

APPEARANCES: WILLIAM DAVID EDDY JR., ESQ.
Attorney for Tara Katelyn Walsh

JASON ANDREW ADVOCATE, ESQ.
Attorney for Stephen Russell

TARA KATELYN WALSH,
Petitioner

STEPHEN GRANT RUSSELL,
Respondent

Digitally Recorded Proceeding transcribed by:
Rachel Hale
(A) Aarons Court Reporting
175 Main Street, Suite 515
White Plains, NY 10601

these are all babysitting, is that correct?

A. Yes.

Q. And when you have hours, what does hours represent?

A. The number of hours that I worked. And it's $20 an hour, so given the number of hours, times 20 is the total amount paid. And when I wrote checks, I had the check number, and when I paid in cash, I provided receipts. And all of that is noted and provided in the exhibits.

THE COURT: Will it be fair to say this is for a 10-month period?

MS. WALSH: Yeah. Yeah.

MR. EDDY: Roughly a 10-month period?

MS. WALSH: Yeah.

Q. And what -- what per hour was being paid here?

A. $20 an hour. This is -- I -- this is my first child, so we were paying --

MR. ADVOCATE: Asked and -- asked and answered.

MS. WALSH: But --

Q. How did you derive the $20 an hour amount?

A. Well, the nanny in San Francisco was making like $30 or more an hour, so I thought that $20 was reasonable. I've also looked on care.com for babysitters, and I found that the level of qualifications of someone that I would use would be around $20. So --

Q. And the total amount paid, these represent either

cash or checks, is that correct?

A. Yes.

MR. ADVOCATE: Objection, leading.

THE COURT: Sustained.

Q. And P -- P1-2 -- excuse me, P9-2 is receipts, is that correct?

A. Yes.

Q. And P -- P3 is checks, is that correct?

A. Yeah. Yes.

Q. Now, when you issued checks, those checks are listed under check number, is that correct?

A. Yes.

Q. And the notes, sometimes you put under -- under notes, what did you put under notes here?

A. If they were cashed with -- I didn't put on all of them whether they were checks. Yeah, it's not terribly consistent, but basically where there's a check number, it was a check and other than that, it was cash.

Q. And you provided receipts, is that correct?

A. Yes.

Q. Why did you need babysitting care?

A. Because I work. I have two businesses, my handbag business and my marketing consulting business, both of which I've been -- at the time, I have more clients now, but during this time period, I was working really hard to build the

business back up to where it was before I had my daughter.

Q. You testified as to this business previously in previous sessions here. Where do you work from?

A. I work primarily from my home. I have for probably like six years I've been working for myself and I've always worked out of my homes. I do go into the city like one or two times a week because I have to meet with my clients or do different projects for them. Like, I was just out all day last week because I had to photograph a space that my client constructed, so --

Q. You just indicated that even before Evie was born, that you actually did use to work out of your home. Is that correct?

A. Yeah, and at one time I had two employees, and they also worked out of my home, so --

Q. Currently, where do you live?

A. At my parents' house.

Q. And that's being required by court order, correct?

A. Yes, because Mr. Russell requested it.

Q. So going through roughly how many hours -- can you take a look at your summary and give the Court an approximate number of hours, say, back in September of 2018, number of hours of babysitting that you required?

MR. ADVOCATE: Objection, the document is not in evidence.

continuation to appear -- I am adjusting the temporary order to 4,200 a month child support, 1,000 a month for childcare through Support Collection Unit effective January 1, 2020, and the date for continuation of hearing will be --

COURT CLERK: April 22 at 9:00 a.m.

THE COURT: And I want everybody here. And that includes you, Mr. Russell. Okay? Thank you so much, thank you, sir, have a good holiday. Thank you, counsel.

MR. EDDY: What's the date?

MR. ADVOCATE: April 22.

COURT OFFICER: Parties, please step out.

MR. DIFABIO: Thank you, Your Honor.

(11:27:03 a.m.)[PROCEEDING CONCLUDED]

C E R T I F I C A T E

I, Rachel Hale, certify that the foregoing transcript of proceedings in the Westchester County Family Court, NYS, Walsh V. Russell, Family Unit #154703 was prepared using the required transcription equipment and is a true and accurate transcript of the proceedings.

Signature: Rachel Hale Date: 1/9/2020

INDEX

E X A M I N A T I O N S

PETITIONER Witness	Direct	Cross	Re Direct	Re Cross
TARA WALSH				
By Mr. EDDY			14	

RESPONDENT Witness	Direct	Cross	Re Direct	Re Cross
NONE				

E X H I B I T S

PETITIONER

Exhibit No.	Description	ID	Evidence
9-1	Summary of Childcare Reimbursements through 08/2019		28
9-2	Receipts Childcare through 08/2019		28
9-3	Childcare Check Records through 08/2019		28
9-4	Client Time/Task Tracking Sheet up to 08/2019		28
10-1	09/2019 through 12/2019 Summary of Costs	34	
10-2	09/2019 through 12/2019 Check Records		34

RESPONDENT

Exhibit No.	Description	ID	Evidence
NONE			

Exhibit B

TARA WALSH
SELF REPRESENTED PARTY
[redacted]
ACP 4690
P.O. Box 1110
Albany, NY 12201-1110
Telephone: [redacted]

Defendant TARA WALSH

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual,

Plaintiff,

v.

TARA WALSH, an individual; and DOES 1-20,

Defendants.

Case No. CGC-18-570137

DEFENDANT TARA WALSH'S MOTION IN LIMINE NO. 5 TO EXCLUDE AFFIDAVITS, REPORTS, SETTLEMENTS AND LEGAL DOCUMENTS & ARGUMENTS FROM RUSSELL USED IN FAMILY COURT CUSTODY & CHILD SUPPORT PROCEEDINGS IN NEW YORK

Action Filed: September 26, 2018
Trial Date: June 7, 2021

WALSH's character as a mother, it will be giving him the opportunity to plead his custody case before this court, rather then address the extremely serious allegations against WALSH for drugging.

B. RUSSELL IS ATTEMPTING TO USE SUBMISSIONS TO FAMILY COURT CUSTODY PROCEEDINGS TO MAKE MONEY A MOTIVE OF WALSH

RUSSELL has already gone the route of complaining that WALSH had his financial documentation accounting for his income that was used in family court child support hearings. He uses emails where WALSH sent documents to herself about RUSSELL'S financials. RUSSELL has attempted to use this of evidence WALSH was intending to "de-fraud" him. Assumably, he will attempted to use this as a motive for WALSH "drugging" him. WALSH allegedly defrauding RUSSELL has nothing to do with his claims of being drugged for years, especially given he has never introduced any evidence of WALSH stealing anything from him. WALSH grew up in one of the wealthiest suburbs in the country and ran two highly successful businesses before RUSSELL entered her life. WALSH had a legal right to ask RUSSELL to assist in financially supporting their daughter, particularly given he contributes nothing towards his daughters care otherwise. WALSH asking for child support is not a motive for "drugging" him.

III. CONCLUSION

For the foregoing reasons, WALSH respectfully asks that this Court order precluding RUSSELL from offering any testimony, documents or other evidence from the Family Court custody and child support proceedings in New York.

DATED: May 31, 2021

By: _____
TARA WALSH

PROOF OF SERVICE

I, Maura Walsh, declare as follows:

I am a citizen of the United States, over the age of eighteen years and not a party to the above entitled action. I live at 394 Whippoorwill RD., Chappaqua, NY 10514. On May 31, 2021, I served the following document(s):

DEFENDANT TARA WALSH'S MOTION IN LIMINE NO. 5 TO EXCLUDE ARGUMENTS FROM RUSSELL USED IN FAMILY COURT

on the following person(s) at the location(s) specified:

JOY LLAGUNA (counsel Plaintiff)

8383 Wilshire Blvd., Suite 935

Beverly Hills, CA 90211

Email: jllaguno@hooklaw.com

in the manner indicated below:

☒ **BY UNITED STATES MAIL – Regular Mail**: Following ordinary business practices, I sealed true and correct copies of the above documents in addressed envelope(s) and placed them at my for collection and mailing with the United States Postal Service. I am readily familiar with the practices for collecting and processing mail. In the ordinary course of business, the sealed envelope(s) that I placed for collection would be deposited, postage prepaid, with the United States Postal Service that same day.

☐ **BY ELECTRONIC MAIL**: I caused a copy of such document to be transmitted via electronic mail in portable document format ("PDF") Adobe Acrobat to the email address above.

I declare under penalty of perjury pursuant to the laws of the State of California that the foregoing is true and correct.

Executed May 31, 2021, at Chappaqua, New York

Maura Walsh

MAURA WALSH

Exhibit C

STATE OF NEW YORK
COUNTY OF WESTCHESTER: YONKERS FAMILY COURT
----------x
IN THE MATTER OF:

TARA KATELYN WALSH, FILE NO: 154703
DOCKET NO.: V-07641-18
Petitioner, O-12635-19

- vs. -

STEPHEN GRANT RUSSELL,
Respondent.
----------x
STEPHEN GRANT RUSSELL, DOCKET NO.: O-01070-21
Petitioner,

- vs. -

TARA KATELYN WALSH,
Respondent.
----------x
Virtual Proceeding
131 Warburton Avenue, Third Floor
Yonkers, New York 10701
June 1, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh

MASSIMO DIFABIO, ESQ.
Attorney for Stephen G. Russell

JENNIFER MARIE JACKMAN, ESQ.
Attorney for the child

ALSO PRESENT: Tara Katelyn Walsh, Petitioner/Respondent
Stephen Grant Russell, Respondent/Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

you know we're going to have to -- you know, that'll obviously affect my schedule.

THE COURT: Right, and it is difficult when you're dealing with a three-hour time difference. Ms. Walsh, do you have a regular work schedule?

MS. WALSH: Yeah, I do, and Evie does, too. You know, she's being potty-trained now. She has swim classes coming up. She has different art classes in the summer. She's starting nursery school in September which is going to be five days a week.

I can tell you that, you know, when I have spoken with Linda Russell (ph) she has -- the last time she visited Evie was on a weekend. I do think she's available on the weekends. I think it's -- she doesn't work. She's retired. And she's spoken to me about coming on the weekends before including this prior weekend that she wanted to come. So I think it's -- it's a little unreasonable to say she can't come any weekends. It's very, very hard for me to like rearrange my entire schedule during the week. I go into the city all the time. I have different meetings. It's -- it's very hard for me to do three days in a row during the work day. I mean, I would be jeopardizing my business and income if I did that.

THE COURT: When do you go into the city?

MS. WALSH: I go into the city like three days a

week now. It depends. I've been working. I have a variety of different clients in the city. One of those clients has asked that I go into their office regularly every week. And then I'm gradually -- before I was going to the city, you know, three to five days a week, so I'm working on that to work out of New York again in Midtown.

THE COURT: What time do you start?

MS. WALSH: I generally start around 9 and I go, you know, depending on the day but even if I'm working from home, I'm in front of my computer. I have my clients calling. I'm doing meetings. I'm not like, just because -- when I do work from home it's not like -- I don't have a normal job. You know, I'm accountable. I have to be working all day.

THE COURT: So maybe we could do a one day a week where you could just transfer Evie to Ms. Russell before you go to work and she can just keep her that day so your parents don't have to deal with the transfer.

MS. WALSH: For the entire? Okay.

THE COURT: Yeah, I mean, there's -- there's endless possibilities as to how this can be arranged, and really the bottom line here is, if you don't agree, I'm going to just make up a schedule that sounds fair to me and it will probably inconvenience one or maybe all of you. It will be a court order, and the only way you will be able to

MR. DIFABIO: Okay, thank you (inaudible).

MS. JACKMAN: That's fine.

THE COURT: Ms. Jackman, are you in agreement with this interim order?

MS. JACKMAN: Yes, Judge, I am.

MR. RUSSELL: I'd like to see a written order.

THE COURT: Okay. All right. So someone will submit a written order and I'll sign off on it. Thank you.

MR. RUSSELL: Thank you.

MR. WEDDLE: Thank you, Judge.

THE COURT: Bye.

(3:50:07 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at Yonkers Family Court, NYS, T. Walsh vs. S. Russell, File #154703, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Valeri Wilson Date June 9, 2021

Electronic signature

Exhibit D

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER
----------x

IN THE MATTER OF:

FILE NO: 154703
TARA KATELYN WALSH, DOCKET NO.: F-08146-18

Petitioner,

- vs. -

STEPHEN GRANT RUSSELL,

Respondent.
----------x

September 16, 2019

HELD AT: WHITE PLAINS FAMILY COURT
111 Dr. Martin Luther King Jr. Blvd.
White Plains, New York 10601

BEFORE: ESTER R. FURMAN, PART 7
Support Magistrate

APPEARANCES: WILLIAM DAVID EDDY, JR., ESQ.
Attorney for the Petitioner

JASON ANDREW ADVOCATE, ESQ.
Attorney for the Respondent

TARA KATELYN WALSH
Petitioner

STEPHEN GRANT RUSSELL
Respondent

Digitally Recorded Proceeding transcribed by:
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questions --

MR. ADVOCATE: I'm going to follow-up to that one --

THE COURT: -- (inaudible) for payment.

Q. I'll use your counsel's suggestion that we include cash in there as well, right, but I'd like to ask you, Ms. Walsh, what kind of things do you buy for the baby in cash?

A. I pay for the babysitting with the cash. The cash -- the child support goes into a Bank of America account. I sent the paperwork for it to be wired into my bank account. For some reason, it hasn't been successful. I've tried to called. It's just something that I've accepted. So the money goes into the Bank of America, you know, child support account. I can't get checks for that account to my knowledge, so when I pay for a large chunk of the babysitting, I take out cash and get it to the babysitter, either my mom or Christina.

Q. Well, Ms. Walsh, first let me ask, is there anything that you usually pay usually, during the normal and ordinary course of your life that you pay for the baby in cash other than the babysitter?

A. I don't typically use cash. It's not -- I mean, I primarily use cards to pay, but I do use cash at times. Yeah.

Q. Welcome to the twenty-first century, right.

So with respect to the babysitting that you say you pay in cash, are you reporting her? Do you pay taxes on her?

A. I don't know.
Q. Is she on the book?
MR. EDDY: Note my objection.
THE COURT: I'll sustain the objection.
MR. ADVOCATE: Your Honor, I do feel that the question of whether someone is being paid on the books is a relevant issue for childcare.
THE COURT: I think --
THE WITNESS: That's actually --
MR. EDDY: Stop.
THE WITNESS: It's a good question because I talked to my accountant the other day about doing that for my mom to put her on payroll because she wants to be able to collect Social Security, so she needs to establish that she's worked. So my accountant said it wouldn't be a problem to put my mom on payroll, so she has a record of working. But I guess that's something that I'm going to be doing moving forward.
Q. Why not put Christina on?
A. I could put Christina on too.
Q. But you haven't?
MR. EDDY: Note my objection.
THE COURT: Well, the witness has already answered. Felt that the question was okay, and she said that she is planning to do so.

MR. ADVOCATE: And I just want to be clear on it that she hasn't don't it yet, is that -- can I get that question --

MR. EDDY: Well, she has to --

MR. ADVOCATE: That she's evaded that question just a little bit. She has been -- she's been paying someone, and I just want it on the record whether the person is so far on the books or not.

THE WITNESS: I have an accountant. He sees all of my accounts. We go through all of the transactions that I've done. I tell him I don't micromanage what he does. I trust him, so I'll follow up with him. I assume he's doing the taxes now. He's probably including something because he asked if my daughter was a dependent, so. I can let you know after I talk to him.

Q. The question of whether your daughter is a dependent, you understand that has nothing to do with whether or not you report the income being pad to the --

THE COURT: I think her answer --

MR. EDDY: She still doesn't have to report it at this point.

THE COURT: -- was that she hasn't and that she plans to, and please move on.

MR. EDDY: Judge Kimba Wood did the same thing.

MR. ADVOCATE: And she got into a lot of trouble

for it by the way, just so you're clear.

THE COURT: Do we need to take a break because that's unacceptable that exchange. So if we need to have that, we can step out or we can continue --

MR. EDDY: My apologies, Your Honor.

MR. ADVOCATE: We'll move on, Your Honor.

Q. So let me ask you a few questions about the childcare that your mother is providing. Your mother until recently has not been working at a paid job, right?

A. She's worked paid jobs.

Q. When was that last time she worked a paid job?

A. Um, she, uh, doesn't -- I don't think she gets paid, but she volunteers, she teachers nursery school kids out of the Greenwich Audubon and she also volunteers at the Greenwich Audubon

Q. And I understand about the volunteer stuff. I'm asking when was the last time that she worked?

MR. EDDY: Are you talking about paid work?

MR. ADVOCATE: Yes, paid work.

MR. EDDY: Okay.

A. She did visiting nurse -- nurse services.

Q. Wasn't that more than twenty years ago?

A. I don't know exactly how long it was, but.

Q. Was it more than that maybe?

A. She has six kids. She's been raising six kids. She

needs to work now. She wants to work. She wants to get income. My two youngest sisters are, you know, juniors, sophomores, and seniors in high school, so I don't -- yeah.

Q. Your father was --

MR. EDDY: Your Honor, what are we --

MR. ADVOCATE: Your Honor, she just opened the door. She said my mother needs to work, that's why I'm paying her. This is absolutely untrue.

MR. EDDY: Whether she needs to work or does work, I mean --

THE COURT: Sustained.

MR. EDDY: -- babysitters need to be paid --

MR. ADVOCATE: No.

MR. EDDY: -- and that's pretty well established.

THE COURT: You know what, the question is is she being paid, and I didn't see any receipts come in on your case, but at this point, if she's being paid, then it's childcare for which there is payment. I haven't --

MR. ADVOCATE: Well, I'm going to take -- I'm going to --

MR. EDDY: Your Honor --

THE COURT: -- decided that yet, but I'm going to not allow questioning regarding income that her parents have. I'm not. And I made that ruling already and I'm

CERTIFICATE

I, Jeanne Barberis, certify the foregoing transcript of proceedings in the County of Westchester, Family Court of the State of New York, Tara Walsh vs. Stephen Russell, Family Unit Number 154703, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Jeanne Barberis Date: December 8, 2019

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